

STATE OF NEW YORK

645--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. ROSENTHAL -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to authorizing the presence of epinephrine auto-injector devices on pre-school premises

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 1 of section 3000-c of the
2 public health law, as amended by chapter 502 of the laws of 2025, is
3 amended to read as follows:
4 (a) "Eligible person or entity" means: (i) an ambulance service or
5 advanced life support first response service; a certified first respon-
6 der, firefighter in a county, city, town or village having a population
7 of less than two million provided such county is not wholly located
8 within a city with a population of more than one million, emergency
9 medical technician, or advanced emergency medical technician, who is
10 employed by or an enrolled member of any such service; (ii) a children's
11 overnight camp as defined in subdivision one of section thirteen hundred
12 ninety-two of this chapter, a summer day camp as defined in subdivision
13 two of section thirteen hundred ninety-two of this chapter, a traveling
14 summer day camp as defined in subdivision three of section thirteen
15 hundred ninety-two of this chapter or a person employed by such a camp;
16 (iii) a school district, board of cooperative educational services,
17 county vocational education and extension board, charter school, and
18 non-public elementary and secondary school in this state or any person
19 employed by any such entity, or employed by a contractor of such an
20 entity while performing services for the entity; (iv) a sports, enter-
21 tainment, amusement, education, government, day care or retail facility;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 an educational institution, youth organization or sports league; an
2 establishment that serves food; or a person employed by such entity; (v)
3 a police officer or peace officer in a county, city, town or village
4 having a population of less than two million provided such county is not
5 wholly located within a city with a population of more than one million;
6 (vi) forest rangers, park rangers and environmental conservation police
7 officers; [~~and~~] (vii) pre-school facilities or any person employed by
8 such facilities; and (viii) any other person or entity designated or
9 approved, or in a category designated or approved pursuant to regu-
10 lations of the commissioner in consultation with other appropriate agen-
11 cies.
12 § 2. This act shall take effect on the ninetieth day after it shall
13 have become a law.